1.1 Controversy Over Territories

Sometimes friends disagree, and sometimes these disagreements can get out of hand. The United States had gained new territory, but the North and the South couldn't agree on how to use it.

MAIN IDEA Disputes over slavery in new territories and states led to growing tensions between the North and the South.

THE COMPROMISE OF 1850

As the middle of the 19th century approached, slavery had become too divisive, or a cause of conflict, for political leaders to ignore any longer. One of the major issues they debated was whether slaveholding should be allowed in new territories and any new states carved from them.

The Missouri Compromise had temporarily settled the issue in 1820. However, the nation once again split over the debate about the expansion of slavery into newly created western territories and states, especially after the Mexican-American War and the discovery of gold in California. In the run-up to the presidential election of 1848, people hotly argued over the future of the new western territories. Disappointed in the position taken by their parties' presidential candidates, antislavery Whigs and a few antislavery Democrats joined together to create the **Free-Soil Party,** which was dedicated to keeping slavery out of the new territories and states.



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In 1849, a national crisis erupted when California applied for statehood as a free state. For most of the period after the Missouri Compromise, the United States had been evenly split between free states and slave states. Statehood for California would upset this balance and give free states a majority in the U.S. Senate. They already enjoyed a majority in the U.S. House of Representatives. Fearing loss of political power and the possibility that slavery might be outlawed, the slave states threatened to withdraw from the Union.

Remember Henry Clay, the main force behind the Missouri Compromise? In January 1850, he presented a plan for a new compromise. It called for California to be admitted as a free state and for the issue of slavery to be left open in the other territories won from Mexico. Clay and two other famous legislators, John C. Calhoun and Daniel Webster, led a passionate debate over the plan, which lasted for eight months.

Finally, in September, the **Compromise of 1850** became law, preventing the Union from splitting apart. Statehood for California that same year would also give rise to the **Pony Express** in 1860. This mail service, delivered by horseback riders, established communication between the East and the West and so helped keep California connected to the rest of the country.

THE FUGITIVE SLAVE ACT

One of the most controversial parts of the Compromise of 1850 was the **Fugitive Slave Act**. The act strengthened an earlier Fugitive Slave Act passed by Congress in 1793 by enforcing greater penalties on runaways and those who aided them. Under this harsh new act, **federal marshals**, or law enforcers who worked for the U.S. government, could force ordinary citizens to help them capture runaway slaves. In addition, anyone who helped a slave escape faced penalties, as did any marshal who failed to enforce the law. Further, the law denied accused fugitives the right to a trial by jury.

The law provoked bitter anger in the northern states. Many people defied it, and some states passed new laws that protected runaway slaves. Armed groups confronted slave catchers and freed slaves from jails. Nevertheless, slavery continued to expand in the South.

Webster-Calhoun Debate

After Henry Clay proposed his plan, John Calhoun's speech was read in the Senate. Calhoun was too ill to stand and deliver it himself. Three days later, Daniel Webster responded to Calhoun, speaking for more than three hours. In the following excerpts from their speeches, Calhoun speaks for the South, while Webster pleads for saving the Union.

PRIMARY SOURCES

The equilibrium [balance] between [the North and the South] . . . has been destroyed. One section has the exclusive power of controlling the government, which leaves the other without any adequate means of protecting itself against its encroachment and oppression.

—John C. Calhoun, 1850

I wish to speak today, not as a Massachusetts man, nor as a Northern man, but as an American. It is not to be denied that we . . . are surrounded by very considerable dangers to our institutions of government. I speak today for the preservation of the Union. Hear me for my cause.

—Daniel Webster, 1850

HISTORICAL THINKING

1. **READING CHECK** Why did California's application for statehood upset some people?
2. **COMPARE AND CONTRAST** What conflicting views on state and federal authority are revealed in Webster's and Calhoun's speeches?
3. **INTERPRET MAPS** According to the Compromise of 1850, in which territories would settlers be allowed to decide whether slavery would be legal or illegal?

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